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Parliamentary type of government is that the head of the state is the constitution. Executive powers are vested in the council of Ministers. The prime minister is Ministers. Though the Union Executive power is vested in the President he exercises aid and advice of the council of Ministers. Union executive consists of:

President
Vice president
Council of Ministers
Attorney general of India

The President

Article 52 provides that there shall be a President of India. Article 53 provides that the power of the union shall be vested in the President and it shall be exercised with the aid and advice of the Council of Ministers. The President can exercise his powers with the aid and advice of the Council of Ministers either directly or through officers and servants.

Election

The President of India is not directly elected by the people. Article 54, provides that the President shall be elected by a body consisting of:

1. The elected members of both Houses of parliament.
2. The elected members of the legislative assembly of the state in accordance with the principle of proportional representation by means of a single transferable vote by secret ballot.

Term of the office

Article 56 says that the President shall hold the office for a term of five years from the date on which he enters upon his office. This period can be shortened by:

1. Resignation- by writing under his hands addressed to the vice president.
2. Death

under any local or other authority subject to the control of the government of the state.

Conditions of President's Office

Article 59 says that the President can't be a member of either House of the legislature of any state. The President shall not hold the other office of profit.

Oath of the President

According to Article 60 before entering upon his office, the President shall take an oath of affirmation in the presence of the Chief Justice of India, or in his absence of the Supreme court available to preserve, protect and defend the constitution and devote himself to the service and well being of the people of India.

Procedure for impeachment of the President

Article 61 of the constitution sets out the Procedure for the impeachment of the President. The President is frequently far away from his office by a procedure of impeachment is an infringement of the constitution.

Procedure

1. The impeachment charge against him may be initiated by either House of the Parliament.
2. The charge must come in the form of a proposal contained in a resolution moved by one-fourth of the members of the house and moved after 14 days advance notice.
3. Such a resolution must be passed by a majority of not less than two-thirds of the membership of the House.
4. The charge is then an investigation by the other House. The President is to be represented at such investigation.
5. On the off chance that the other House after examination passes a resolution pronouncing that the charge is demonstrated, such resolution will have the effect of removing the President from his office from the date on which the resolution is so passed.

Diplomatic Powers

- The President sends and receives Ambassadors and other diplomatic representatives.
- All treaties and international agreements are made in his name though Parliament.

Executive Powers

- According to Article 53, the Executive power of the Union is vested in the President.
- According to Article 77, the Executive action of the government of India is to be done in the name of the President.
- Power in relation to the Council of Ministers: The President appoints and dismisses the Prime Minister and Ministers.
- It is the duty of the Prime Minister to communicate to the President all decisions of the Council of Ministers and to furnish information, which he calls for.

Legislative Powers

- Power in relation to House of Parliament: The President is an integral part of the Parliament. Article 79 provides that Parliament shall consist of the President and two Houses to be known as the Council of States and the House of Representatives.
- President has the power to nominate 12 members in the Council of States, i.e. Article 80(1).
- To address and send messages to House: Article 86, the President may address the Parliament assembled together.
- To send messages as to pending Bills: Article 86(2), The President may send messages to the Parliament with respect to pending Bills or otherwise.
- Assent to bill: Article 111, every bill after being passed by both the Houses of Parliament, it is presented to the President for his assent. The President may give his assent to the bill or withhold it or reserve it for the decision of the President.

Powers to make rules

- Under Article 72 the President may grant pardon, reprieves, or remission of sentence or sentence of any person convicted of any offences

Emergency Powers

Article 352 to 360 of the constitution arms the President with enormous emergency powers. The emergency powers envisaged under the constitution are of three kinds:

- Emergency arising out of the war, external aggression or armed rebellion.
- Emergency due to the failure of constitutional machinery in the state.
- Financial emergency.

Prime Minister

Article 75 of the Indian Constitution mentions that Prime Minister is appointed by the President. There is no specific procedure for his election or appointment. Article 74(1) states that the President shall act on the advice of the Ministers with a Prime Minister at the head to aid and advise the President.

The President of India appoints a person as the Prime Minister who is either the leader of the majority party in the Lok Sabha or is a person who is able to win the confidence of the Lok Sabha by gaining the support of other political parties. All other ministers are appointed on the advice of the Prime Minister. The President can also appoint or dismiss the Prime Minister only when no party has a clear majority in the Lok Sabha.

Power and Functions of Prime Minister

The Prime Minister of India serves the country by following various functions and responsibilities:

- **The leader of Country:** The Prime Minister of India is the Head of the Government.
- **Portfolio allocation:** The Prime Minister has the authority to assign portfolios to ministers.

Qualifications for Prime Minister

To become an Indian prime minister one has to be

- A citizen of India.
- A member of either Rajya Sabha or Lok Sabha
- He should have completed his 30 years if he is a member of the Rajya Sabha and 25 years of age if he is a member of the Lok Sabha

Council of Ministers

The State Council of Ministers is the real executive of the state. The Governor is the executive head of a state and the Constitution provides for each state a Council of Ministers with the Chief Minister as its head for aiding and advising the Governor in the exercise of his powers.

Types of Ministers

The Indian Constitution does not categorize ministers into ranks; however, in India, ministers are of four types:

1. **Cabinet Ministers**—He is present and he participates in every meeting of the Council of Ministers.
2. **Minister of State with independent charge**—He is a Minister of State who is not a Cabinet Minister. When any matter concerning his Department is on the agenda, he is invited to attend the meeting.
3. **Minister of State**—He is a Minister who does not have independent charge of a Department but works under a Cabinet Minister. The work of such Minister is allotted by his Cabinet Minister.
4. **Deputy Minister**—He is a Minister who works under a Cabinet Minister or a Minister of State with independent charge. His work is allotted by the Minister under whom he is working.

Powers of Council of Ministers

The powers of the Council of Ministers include:

Council of States) and **Lok Sabha** (the House of the People).

Rajya Sabha

- 🏛️ The Rajya Sabha is an indirectly elected body and represents the States.
- 🏛️ The elected members of State Legislative Assembly elect the members.
- 🏛️ In India, states with larger size of population get more representatives in the Rajya Sabha. For example, Uttar Pradesh (the most populated state) sends 31 members to the Rajya Sabha; on the other hand, Sikkim (the least populated state) sends only one member to the Rajya Sabha.
- 🏛️ The number of members to be elected from each State has been fixed in Article 80 of the Constitution.
- 🏛️ Members of the Rajya Sabha are elected for a term of **six** years and they can be re-elected.
- 🏛️ Members of Rajya Sabha are elected in such a manner that they do not all retire altogether; rather after every two years, one-third member complete their term and are held for those one-third seats only.
- 🏛️ Likewise, the Rajya Sabha never gets fully dissolved and hence, it is known as a **permanent House** of the Parliament.
- 🏛️ Apart from the elected members, the President appoints **12** members from among the eminent persons in literature, science, art, and social service.

Lok Sabha

important part. It can pass bills concerning to those entire subject which have to be passed by both the Houses. In case of disagreement between the two Houses, the will of Lok Sabha will prevail in joint sitting of Lok Sabha because Lok Sabha has more members than Rajya Sabha.

2) Executive Powers- According to parliamentary form of government, the executive power is vested in the president and is exercised by him to the parliament for its acts and policies. Hence parliament exercises various measures like committees, question hour, zero hour etc. ministers are members of the Parliament.

3) Financial Powers- It includes enactment of budget, scrutinizing the government's financial policy (government with respect of financial spending through financial commission and audit control)

4) Constituent Powers- Example - To amend the constitution, to pass and

5) Judicial Powers- Includes

- (i). Impeachment of President for violation of constitution
 - (ii). Removal of judges of Supreme Court and High court
 - (iii). Removal of Vice- President
 - (iv). Punish members for breach of privileges like sitting in the house when they are not an eligible member, serving as member before taking oath etc.
- 6) Electoral Powers-** It has its participation in the election of President. Members of Lok Sabha elect speaker and deputy speaker from among its members. Members of Rajya Sabha elect deputy chairman.

7) Other Powers-

- (i). To discuss various issues of national and international importance

Fundamental rights of the people.

It decides the disputes between Centre and States regarding encroachment and maintains the supremacy of the Constitution.

It is the highest court of appeal in India.

Originally the total number of judges was 7, but in 1977, their number was raised to 9. In 1986, it was further raised to 26 (including CJI). Presently there are 31 Judges.

Qualifications to be appointed as a judge of Supreme Court:

- He must be a citizen of India.
- He must either be a distinguished jurist, or one who has been a judge of a High Court for at least 5 years or an advocate of a High Court (or 2 or more such courts) for at least 10 years (Article 124).

Appointment and Removal of Judges

No minimum age is fixed for the appointment of a judge. The Chief Justice is appointed by the President. In this matter, the President shall consult such judges of the high courts as he may deem necessary. A 9 judge bench of the SC is constituted. The senior most judge of Supreme Court should be appointed as Chief Justice.

In the appointment of other judges, the President shall always consult the Chief Justice. He 'may' consult other judges of SC and high courts as he may deem necessary.

Original Jurisdiction

- As a Federal court, the Supreme Court decides disputes between the Indian Federation. More elaborately, any dispute between:
 - the Centre and one or more states; or
 - the Centre and any state or states on one side and one or more states on the other side or between two or more states.
- In the above federal disputes, the Supreme Court has **exclusive** original jurisdiction.

Writ Jurisdiction

Article 32 of the Constitution gives an extensive original jurisdiction to the Supreme Court with regard to enforcement of Fundamental Rights. It is empowered to issue writs, including writs in the nature of habeas corpus, mandamus, prohibition, and certiorari to enforce them.

Appellate Jurisdiction:

A superior or higher court's authority to hear and resolve appeals against the decisions of lower courts is called appeal jurisdiction. For political, civil and criminal cases, the Supreme Court will hear appeals against the High Courts' decisions. It has the authority to review the decisions of any court or tribunal within the territory of our country, at its own discretion. In addition, in any criminal case, an appeal can be brought before the Supreme Court if the High Court certifies that the case is eligible for an appeal before the Supreme Court. In cases relating to elections and Labour and Industrial Tribunals, the special appeal is a very convenient tool in the hands of the Court.

Advisory Jurisdiction:

Special leave to appeal by the Supreme Court

It is also called Special leave petition (SLP). After a judgement has been given in a hierarchy, any party, unsatisfied or aggrieved by the outcome may go to the appellate court: which in India is generally a High court. However, if a party is unsatisfied by the appellate courts decisions, a further appeal can be made to the Supreme Court of India. This is a special class of appeals, which may not follow the normal procedure of the courts and tribunals known as SLPs. Article 136 of the constitution allows the Supreme Court to grant special leave to appeal against any judgement or order in any matter from any court or tribunal in the country.